



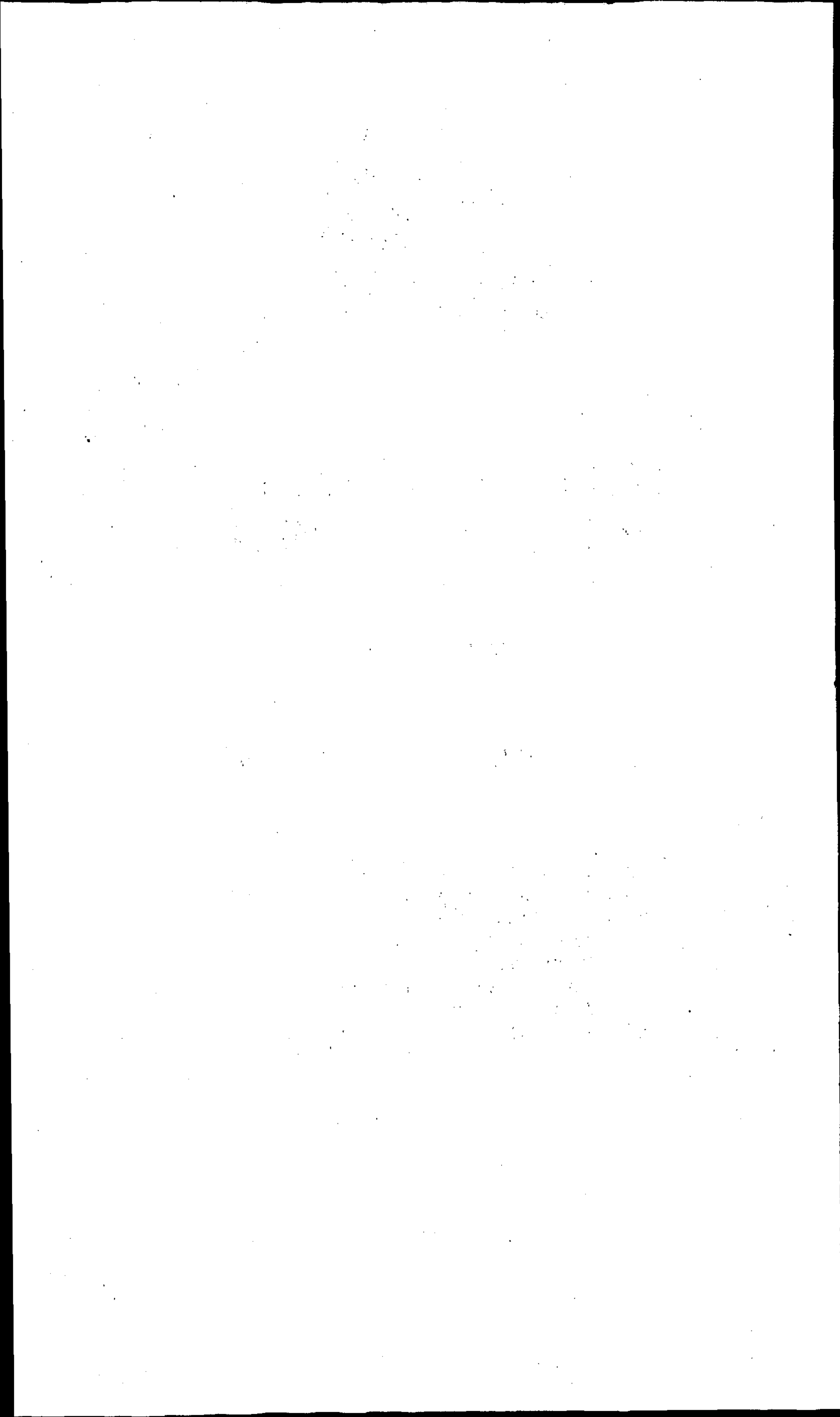
National Provident Institution Act 1964

CHAPTER xxiii

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ELIZABETH II



1964 CHAPTER xxiii

An Act to amend the National Provident Institution Act, 1910, and to confer further powers on the National Provident Institution; and for other purposes.

[16th July 1964]

WHEREAS the National Provident Institution (hereinafter called "the Institution") was established and enrolled in the year 1835 under the laws then in force relating to friendly societies with the object of raising by subscriptions amongst the members thereof or by voluntary contribution a fund for the mutual benefit, relief and maintenance of its members:

And whereas following a great increase in the volume of business carried on by the Institution, the Institution was incorporated by the National Provident Institution Act, 1910 (hereinafter called "the principal Act"), with the object (inter alia) of granting assurances whether dependent on or connected with life or not and with power (inter alia) to acquire lands and to sell, exchange, mortgage, lease, manage, build upon, develop or otherwise improve the lands of the Institution:

And whereas it is expedient in order to enable the Institution to carry on its business to the best advantage and in accordance with present-day requirements that certain alterations should be made in the provisions of the principal Act and that the other provisions as contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the National Provident Institution Act 1964.

Amendment of section 2 of principal Act.

2. In section 2 (Interpretation) of the National Provident Institution Act, 1910 (hereinafter called "the principal Act"), for the words "the actuary and the secretary or (in the absence of the secretary) the assistant secretary" there shall be substituted the words "the actuary or (in his absence) such other person, being a qualified actuary, as the directors may from time to time appoint to act in his place and the secretary or (in his absence) such other person as the directors may from time to time appoint to act in his place".

Amendment of objects of Institution.

3. Section 5 (Objects of Institution) of the principal Act shall be read and have effect as if the following additional paragraph were added immediately after paragraph (ii), that is to say:—

"(iii) To undertake the office of executor or administrator of any deceased person (wherever domiciled) or that of trustee of any will, deed or other instrument, and to perform the duties incident to any such office and to give or enter into all necessary bonds or other securities which may appear to be desirable in connection with any such office."

Amendment of powers of Institution.

4. Section 6 (Powers of Institution) of the principal Act shall be read and have effect as if the proviso thereto were omitted and as if the following paragraph were substituted for paragraph (i), that is to say:—

"(i) To do all such things as are specified in the preceding section.";

and as if the following additional paragraphs were added immediately after paragraph (v), that is to say:—

"(vi) To subscribe for, take, purchase or otherwise acquire and hold shares, stock, debentures or other securities of or any other interest in any company or other body corporate or any association having objects altogether or in part similar to those of the Institution or carrying on or authorised to carry on any business capable of being conducted so as directly or indirectly to benefit the Institution.

(vii) To form or assist in forming any company or other body corporate or any association for all or any one or more of the following purposes, that is to say: of acquiring, holding, managing or developing all or any

part of the property, investments, assets and business of the Institution, of undertaking all or any of the liabilities of the Institution, or of carrying on any business or undertaking which may appear likely to assist or benefit the Institution, and to subscribe for, underwrite or otherwise acquire and hold or to place or assist in placing the whole or any part of the shares, stock, debentures or other securities of or any other interest in any such company, body corporate or association, and to dispose of any shares, stock, debentures or other securities or interests acquired as aforesaid.

(viii) To lend and advance money or give credit to, or otherwise to subsidise and assist, on such terms as may seem expedient, such persons, companies or other bodies corporate or associations as may seem expedient, and to guarantee the performance of any contract or obligation and the payment of money of or by any such person, company or other body corporate or association as aforesaid, and generally to give guarantees and indemnities.

(ix) To do all such other things as are incidental or conducive to the management of the business of the Institution.

(x) To do all or any of the things hereinbefore authorised in any part of the world and either alone or in conjunction with others and either directly or by or through agents, trustees, wholly or partially owned companies or bodies corporate, or others."

5. In section 13 (Annual general meetings of Institution) of the principal Act the words "in the city or county of London" shall be omitted, and the following words shall be added at the end of the said section, namely:—

"The annual general meeting shall be held in England at such place within 100 miles of the principal office for the time being of the Institution as the directors may from time to time think fit, unless some other place shall have been appointed for the purpose by a resolution of a special general meeting of the members."

6.—(1) A body corporate may be a member of the Institution and its membership shall be subject to the same limitations and restrictions in all respects as if it were a living person, and it shall be deemed to be living within the meaning of the definition of "member" in section 2 of the principal Act unless and until it shall have been dissolved. Corporate members.

(2) Any corporation which is a member of the Institution may by resolution of its directors or other governing body authorise such person as it thinks fit to act as its representative at any meeting of the Institution, and the person so authorised shall be

entitled to exercise the same powers on behalf of the corporation which he represents as that corporation could exercise if it were an individual member of the Institution.

Objections to persons voting at meetings.

7. No objection shall be raised to the right of any person to vote at any general meeting of the Institution except at the meeting or adjourned meeting at which the vote objected to is given or tendered, and every vote not disallowed at such meeting shall be valid for all purposes. Any such objection made in due time shall be referred to the chairman of the meeting, whose decision shall be final and conclusive.

Authentication of documents.

8. For section 19 (Authentication of documents) of the principal Act there shall be substituted the following section:—

“ 19. The common seal of the Institution shall only be used by the authority of the directors or of a committee of the directors authorised by the directors in that behalf. All deeds and formal instruments or documents of every description which require to be granted and executed by the Institution shall be valid and sufficient when sealed with the common seal of the Institution and (unless otherwise provided from time to time by the rules) signed by a director and countersigned by the secretary or by such other person as the directors may from time to time appoint: Provided that (a) all policies and all contracts for sale or purchase and tenancy agreements and cheques and orders on the Institution's bankers shall be valid and sufficient if signed by such person or persons as the directors may from time to time appoint, and (b) all receipts for premiums and other annual or periodical payments in favour of the Institution and for any other payment made to the Institution in the ordinary course of business shall be valid and sufficient if signed by such person as the directors may from time to time appoint or if on a form issued by the Institution with the name of such person printed or otherwise placed thereon as acknowledging the receipt of the premium or payment signed or initialled by some person purporting to act as cashier, clerk or agent of the Institution.”

Amendment of section 28 of principal Act.

9. In subsection (3) of section 28 (Alteration of rules) of the principal Act the apostrophe shall be omitted after the word “directors” where that word secondly occurs.

Costs of Act.

10. The costs, charges and expenses preliminary to and of and incidental to preparing, obtaining and passing this Act shall be paid by the Institution.

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